

Pakistan–India Relations & the Kashmir Conflict (1947–Present)

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Outline:

1. Timeline of Pakistan–India Relations (1947–Present)

A chronological summary of key political, military, and diplomatic events shaping bilateral relations, including wars, treaties, nuclear developments, terrorism, and current disputes.

1.1 First Kashmir War – 1947–1948

Covers the first Indo-Pak war over Kashmir following the Partition, leading to the establishment of the Line of Control (LoC) and partial occupation of Kashmir by both countries.

1.2 Indus Waters Treaty – 1960

Details the historic water-sharing treaty brokered by the World Bank, granting eastern rivers to India and western rivers to Pakistan. Tensions have re-emerged in recent years over dam construction and potential revocation threats.

1.3 Second Indo-Pak War – 1965

Focuses on the second major war over Kashmir, initiated by Pakistan's Operation Gibraltar and resulting in a stalemate, followed by the Tashkent Agreement mediated by the USSR.

1.4 Third Indo-Pak War & Creation of Bangladesh – 1971

Explains the war triggered by the Bangladesh Liberation Movement, leading to Indian military intervention, Pakistan's surrender, and the creation of Bangladesh.

1.5 Simla Agreement – 1972

Post-1971 diplomatic accord committing both countries to resolve disputes bilaterally and respecting the Line of Control (LoC) as a ceasefire line.

1.6 Pokhran-I: Indian Nuclear Test – 1974

India conducted its first nuclear test ("Smiling Buddha") in Rajasthan, drastically shifting regional security dynamics and prompting Pakistan to pursue nuclear deterrence.

1.7 Siachen Conflict – 1984

India occupied the Siachen Glacier in Kashmir, preempting a possible Pakistani move. The area remains militarized and highly contested, despite harsh weather.

1.8 Kashmir Insurgency & Armed Campaign – 1989–Present

Marks the rise of insurgency in Indian-administered Kashmir, with Pakistan's alleged support. India responded with heavy militarization, human rights issues, and anti-terror operations.

1.9 Pakistani Nuclear Tests – 1998

In response to India's Pokhran-II tests, Pakistan conducted five nuclear tests in

Chagai Hills. This formalized nuclear deterrence in South Asia.

1.10 Kargil Conflict – 1999

A high-altitude conflict where Pakistani troops and militants infiltrated Indian territory in Kargil. India recaptured the area with international support, notably from the U.S.

1.11 Indian Parliament Attack – 2001

Militants attacked the Indian Parliament, resulting in India blaming Pakistan-based groups. Troop mobilizations followed, nearly leading to war.

1.12 Samjhauta Express Bombing – 2007

A terrorist attack on the Indo-Pak friendship train killed 68 people, mostly Pakistanis. The case later involved controversial investigations in India.

1.13 Mumbai Terror Attacks – 2008

Coordinated attacks by Lashkar-e-Taiba terrorists killed 166 people. Strained relations further, leading to a breakdown of dialogue.

1.14 Pampore Attack – 2016

Militants attacked an Indian CRPF convoy in Pampore, Kashmir, causing multiple casualties and escalating Indo-Pak tensions.

1.15 Burhan Wani Killing – 2016

Burhan Wani, a popular Kashmiri militant, was killed by Indian forces. His death triggered mass protests, unrest, and further polarisation.

1.16 Uri Attack – 2016

A terrorist attack on an Indian army base in Uri killed 19 soldiers. India responded with “surgical strikes” across the LoC.

1.17 Indus Waters Treaty Controversy – 2016

After the Uri attack, India threatened to revoke or re-negotiate the treaty, raising water security fears in Pakistan.

1.18 Kartarpur Corridor Initiative – 2019

Despite tensions, both countries agreed to open a visa-free corridor for Sikh pilgrims between Indian Punjab and Kartarpur in Pakistan.

1.19 Pulwama Attack – 2019

A suicide bombing killed 40 Indian soldiers. Claimed by Jaish-e-Mohammed, it led to Indian airstrikes in Balakot.

1.20 Balakot Air Strikes – 2019

India claimed to hit terrorist camps inside Pakistan. Pakistan responded with air strikes, escalating tensions near full-scale war.

1.21 Kulbhushan Jadhav Case

India claimed Jadhav was a retired navy officer kidnapped in Iran; Pakistan accused him of espionage. The ICJ ruled in favor of consular access.

1.22 Pahalgam Attack

One of the more recent militant attacks in Kashmir targeting security forces and triggering renewed crackdowns by Indian forces.

2. Kashmir Dispute: Core Conflict between India and Pakistan

Explains the origins and dynamics of the Kashmir conflict, which lies at the heart of Indo-Pak hostilities since 1947.

2.1 What is the Kashmir Dispute?

Post-Partition, the Muslim-majority princely state of Jammu & Kashmir was

expected to join Pakistan. The Maharaja acceded to India, sparking the first war and creating a divided Kashmir.

2.2 Areas Controlled by India & Pakistan

- **India:** Jammu, Kashmir Valley, Ladakh
 - **Pakistan:** Azad Jammu & Kashmir (AJK), Gilgit-Baltistan
- Also, **China** controls Aksai Chin and parts of Shaksgam Valley.

2.3 Line of Control & LAC

LoC divides Indian and Pakistani control in Kashmir; the LAC separates Indian-held Ladakh from Chinese territory (Aksai Chin).

2.4 Instrument of Accession

India claims legitimacy based on the 1947 Instrument of Accession signed by the Maharaja of Kashmir. Pakistan disputes its validity due to lack of public consent.

2.5 Pakistan's Claim over Kashmir

Pakistan claims:

- Kashmir is the "jugular vein of Pakistan"
- Supports **right of self-determination** for Kashmiris
- Kashmir is essential for Pakistan's **water security**

3. United Nations and Kashmir Issue

UN involvement aimed at resolving the Kashmir issue through peaceful means.

3.1 UN Resolutions on Kashmir

Focuses on Resolution 47 (1948), calling for:

- **Ceasefire**
- **Withdrawal of Pakistani forces**
- **Referendum under UN supervision**

3.2 Key Resolutions to Mention

- **Resolution 47 (1948)** – Ceasefire and plebiscite proposal
- **Further Resolutions (1950–1957)** – Reaffirmed plebiscite demand, opposed India's unilateral actions

4. Proposed Solutions & Diplomatic Efforts

Outlines past and proposed frameworks to resolve the Kashmir conflict.

4.1 Dixon Plan

Proposed by UN mediator Sir Owen Dixon, suggested division of Kashmir based on religious demography, granting autonomy to both parts.

4.2 Musharraf Four-Point Formula

Included:

- Demilitarization
- Self-governance
- Joint management
- No change of borders

5. Article 370 & 35A Revocation – 2019

Examines India's constitutional changes and their legal/political fallout.

5.1 What is Article 370?

Granted special status to J&K — its own constitution, flag, and autonomy in governance except defense, finance, and foreign affairs.

5.2 What is Article 35A?

Allowed J&K to define "permanent residents" and provide special rights in jobs, land ownership, and scholarships. Revoked in August 2019.

6. Why Kashmir Remains a Flashpoint

Identifies why Kashmir is one of the most dangerous conflicts globally.

6.1 Involvement of Three Nuclear Powers

India, Pakistan, and China all claim or control parts of Kashmir, making escalation dangerous.

6.2 Hydro-Politics

Kashmir is the origin of rivers flowing into Pakistan. Modi once said, "**Blood and water cannot flow together,**" indicating linkage between terrorism and water diplomacy.

6.3 Human Rights & International Attention

Frequent blackouts, curfews, arrests, and communication bans bring global criticism on India's conduct in Kashmir.

7. Way Forward: Resolving the Conflict

Proposes realistic and creative solutions for long-term peace in Kashmir.

7.1 Implement Existing Frameworks

- Enforce **UN Resolutions**
- Revisit **Dixon Plan**
- Revive **Musharraf Formula**

7.2 Plebiscite or Referendum

Allow Kashmiris to decide their political future under international supervision.

7.3 Status Quo Maintenance

Formalize the current LoC into an international border — a "soft border" approach.

7.4 BDS Movement & Diplomatic Pressure

- Launch global campaigns to isolate India diplomatically
- Economic divestment and international sanctions

7.5 Confidence-Building Measures (CBMs)

- Increase cross-LoC trade
- Loosen travel restrictions
- Engage in Track-II diplomacy
- Involve international mediators

Detailed Notes

Pakistan–India Relations & the Kashmir Conflict (1947–Present)

(For CSS, IR, and Current Affairs Paper)

Genesis and Timeline of Pakistan–India Relations (1947–Present)

- The relationship between Pakistan and India has been shaped by deep-rooted historical, territorial, and ideological differences since the partition of British India in 1947.
- Key phases in bilateral relations include multiple wars, territorial disputes, water conflicts, diplomatic treaties, and enduring hostilities.
- The Kashmir issue remains the core dispute and a flashpoint for military escalations and political tensions between the two nuclear-armed nations.
- Despite efforts at dialogue and conflict resolution, peace has remained fragile due to cross-border terrorism, mutual distrust, and strategic rivalry.

1.1 First Kashmir War (1947–48)

- After the partition, the princely state of Jammu & Kashmir, a Muslim-majority area ruled by Hindu Maharaja Hari Singh, became a contested territory between India and Pakistan.
- In October 1947, tribesmen from Pakistan's tribal areas (with alleged state backing) invaded Kashmir to force the Maharaja's decision in Pakistan's favor.
- The Maharaja, seeking military assistance, signed the **Instrument of Accession** to India, which allowed Indian troops to enter and defend the territory.
- The war continued until **January 1949**, when the **United Nations mediated a ceasefire** through the UN Commission for India and Pakistan (UNCIP).

Outcome and Division of Kashmir

- **Indian-administered Territory:** Jammu, Kashmir Valley, and Ladakh.
- **Pakistan-administered Territory:** Azad Jammu & Kashmir (AJK) and Gilgit-Baltistan.
- The ceasefire line became known as the **Line of Control (LoC)** after 1972.
- The **UN passed several resolutions**, notably **Resolution 47 (1948)**, calling for a plebiscite in Kashmir, which remains unimplemented.

1.2 Indus Waters Treaty (1960)

- Signed on **September 19, 1960**, between **Prime Minister Nehru of India** and **President Ayub Khan of Pakistan**, with mediation by the **World Bank**.
- Designed to regulate the use and distribution of the **Indus River System**, crucial for agriculture and water security in both countries.

River Allocation Under the Treaty

- **Eastern Rivers** (Ravi, Beas, Sutlej) were allocated to **India**.

- **Western Rivers** (Indus, Jhelum, Chenab) were allocated to **Pakistan**, though India can use limited quantities for non-consumptive purposes (e.g., hydropower).

Strategic Importance and Vulnerability

- Around **80% of Pakistan's agriculture** depends on irrigation from these rivers.
- Despite being hailed as a successful and long-standing water-sharing agreement, the treaty has come under pressure:
 - India threatened to revoke it after the **2016 Uri attack**, branding water as a "weapon."
 - In 2019, following the **Pulwama attack**, India again warned of blocking water flow to Pakistan.
- The **World Bank continues to oversee** the treaty under its permanent Indus Commission mechanism.
- Pakistan has raised concerns at international forums about Indian hydroelectric projects like **Kishanganga** and **Ratle** on western rivers.

1.3 Second Indo-Pak War (1965)

- Infiltration under **Operation Gibraltar** initiated by Pakistan in August 1965 aimed to incite rebellion in Indian-administered Kashmir.
- India responded militarily, crossing the international border and advancing towards **Lahore and Sialkot**, escalating the conflict into a full-scale war.
- The war lasted for 17 days, leading to heavy casualties and economic strain on both sides.

Diplomatic Resolution: Tashkent Agreement

- The war ended on **September 23, 1965**, following a **ceasefire brokered by the USSR** (now Russia) and signed on **January 10, 1966**, in **Tashkent (now Uzbekistan)**.
- Signed by **Lal Bahadur Shastri (India)** and **Ayub Khan (Pakistan)**.
- Key provisions:
 - Withdrawal of forces to pre-war positions.
 - Resumption of diplomatic and economic relations.
- **Kashmir remained unresolved**, and public sentiment in Pakistan saw the war as a diplomatic failure.
- **Lal Bahadur Shastri died mysteriously** shortly after the signing, adding to controversy and speculation.

1.4 Third Indo-Pak War & Bangladesh Liberation (1971)

- Stemmed from **internal political conflict in East Pakistan**, where the **Awami League**, led by Sheikh Mujibur Rahman, won the 1970 general elections but was denied power.
- A brutal military crackdown by West Pakistan (Operation Searchlight) in March 1971 led to mass atrocities and over **10 million refugees**

fleeing to India.

- India intervened militarily in December 1971 after increasing international and domestic pressure.

Consequences of the 1971 War

- On **December 16, 1971**, Pakistani forces under Lt. Gen. A.A.K. Niazi **surrendered in Dhaka** to Indian forces led by Lt. Gen. Jagjit Singh Aurora.
- Over **90,000 Pakistani soldiers** were taken as **Prisoners of War (POWs)**—the largest surrender since World War II.
- Resulted in the **creation of Bangladesh** as an independent nation.
- Delivered a **severe psychological and military blow** to Pakistan, leading to internal political upheaval and eventual fall of General Yahya Khan's regime.

1.5 Simla Agreement (1972)

- Signed on **July 2, 1972**, by **Prime Minister Indira Gandhi (India)** and **President Zulfikar Ali Bhutto (Pakistan)** in Simla, India.
- Aimed to reset bilateral relations following the 1971 war and establish a framework for peaceful resolution of disputes.

Key Provisions of the Simla Agreement

- **Recognition of the Line of Control (LoC)** as the de facto border in Kashmir, to be respected by both sides.
- Commitment to **bilateral resolution** of all disputes, **excluding third-party mediation**.
- **Renunciation of force** and a pledge to work toward normalizing relations.
- Establishment of **diplomatic channels** and high-level communication to reduce tensions.

Criticism and Strategic Impact

- Critics in Pakistan argue that the agreement **weakened international support** for the Kashmir cause by excluding UN involvement.
- India interprets the Simla Agreement as a bar to any **external intervention**, including by the UN or OIC.
- However, the agreement has not prevented subsequent conflicts or border skirmishes, especially during events like the **Kargil War (1999)** or post-**Pulwama attacks (2019)**.

1.6 Indian Nuclear Test – Pokhran-I (1974)

The period from 1974 to 1998 witnessed a transformation in the strategic landscape of South Asia, primarily driven by military developments, nuclearization, and prolonged conflict in Kashmir. This era solidified the adversarial nature of Indo-Pak relations and introduced new dimensions like nuclear deterrence and glacier warfare.

- On **18 May 1974**, India conducted its first successful underground

nuclear test in the Thar Desert at **Pokhran, Rajasthan**, code-named **"Smiling Buddha."**

- India described the test as a **"peaceful nuclear explosion"**, but it marked the beginning of South Asia's nuclear arms race.
- The test was carried out under **Prime Minister Indira Gandhi's** leadership and shocked the global community and Pakistan in particular.

Impact on Pakistan

- Pakistan viewed the test as a direct threat to regional security and **accelerated its nuclear ambitions** in response.
- The government under **Prime Minister Zulfikar Ali Bhutto** initiated a covert nuclear weapons program, famously stating, "Even if we have to eat grass, we will make the bomb." – Z.A. Bhutto
- The program gained momentum with the **recruitment of Dr. Abdul Qadeer Khan** in 1975, who brought centrifuge enrichment technology from the Netherlands.
- The test disrupted the **military balance of power** in South Asia, forcing Pakistan to invest heavily in nuclear deterrence.

1.7 Siachen Conflict (1984–Present)

- The **Siachen Glacier**, located in the eastern Karakoram range of the Himalayas, became a flashpoint due to **ambiguous boundary demarcations** in the 1949 Karachi Agreement and the 1972 Simla Agreement.
- In April 1984, India launched **Operation Meghdoot** and occupied key positions along the glacier, fearing Pakistani encroachment based on climbing expeditions and map purchases by Pakistan.

Military and Strategic Consequences

- Pakistan retaliated with deployments and skirmishes, and since then, **both sides have maintained a military presence** at altitudes over 20,000 feet, making it the **highest battleground on Earth**.
- Thousands of troops have died, **mostly from extreme weather conditions**, avalanches, and frostbite rather than direct combat.
- The two sides agreed to a **ceasefire in 2003**, but no formal demilitarization has occurred.
- Attempts to resolve the conflict, including **Track II diplomacy**, have repeatedly stalled due to trust deficits and national security concerns.

Human and Economic Cost

- The cost of maintaining troops at such high altitudes is estimated to be **over \$300 million annually for India** and **around \$100 million for Pakistan**.
- The conflict has caused significant **logistical and human hardships**, including supply drops by helicopters and the use of oxygen tents.

1.8 Kashmir Insurgency & Armed Struggle (1989–Present)

- In **1987**, allegations of **massive rigging in Jammu and Kashmir legislative elections** ignited widespread public outrage among Kashmiri youth.
- Many turned to **armed rebellion** after disillusionment with the democratic process. Insurgency formally began in **1989**, with increased violence and anti-India protests.
- Pakistan was accused of **supporting the insurgency** by providing arms, training, and safe havens to militant groups like **Hizbul Mujahideen** and **Lashkar-e-Taiba (LeT)**.

India's Counterinsurgency Measures

- India deployed over **700,000 troops** and enforced laws such as:
 - **AFSPA (Armed Forces Special Powers Act)** – grants sweeping powers to Indian forces.
 - **Public Safety Act (PSA)** – allows detention without trial.
- Human rights organizations, including **Amnesty International** and **Human Rights Watch**, have repeatedly highlighted **allegations of torture, fake encounters, enforced disappearances, and mass graves**.

Humanitarian Crisis and Death Toll

- Estimated deaths: **90,000+** (varies by source).
- **Mass displacement** of Kashmiri Pandits in the early 1990s.
- **Disappearances**: More than **8,000 missing persons** documented by groups like the **Association of Parents of Disappeared Persons (APDP)**.
- Civil liberties have been severely curtailed, and youth radicalization continues, especially post **Burhan Wani's killing in 2016**, which sparked mass unrest.

1.9 Pakistani Nuclear Tests – Chagai-I and II (1998)

- On **May 11 and 13, 1998**, India conducted **five nuclear tests** at Pokhran (Pokhran-II), showcasing enhanced nuclear capabilities under PM **Atal Bihari Vajpayee**.
- In response, **Pakistan conducted six nuclear tests** on **May 28 and 30, 1998**, in the **Chagai Hills of Balochistan**, under PM **Nawaz Sharif**, code-named **Chagai-I and Chagai-II**.

Significance of Youm-e-Takbeer (May 28)

- Pakistan declared itself a **nuclear weapons state**, thereby ensuring a state of **Mutually Assured Destruction (MAD)** in South Asia.
- The tests were a **nationalist triumph**, celebrated annually as **"Youm-e-Takbeer."**
- Global reactions included **sanctions** from the United States, Japan,

and other Western powers against both India and Pakistan.

- The nuclearization of South Asia introduced a **new strategic equilibrium**, limiting the scope of full-scale wars but **intensifying low-intensity conflicts** like **Kargil (1999)**.

Deterrence Doctrine and Strategic Command

- Pakistan adopted a doctrine of "**credible minimum deterrence**," while maintaining ambiguity about its **no-first-use policy**.
- The creation of the **National Command Authority (NCA)** in 2000 institutionalized civilian-military oversight of Pakistan's nuclear arsenal.

Era of Escalation and Cross-Border Tensions (1999–2007)

From 1999 to 2007, Pakistan and India entered a volatile period characterized by war, terror attacks, and diplomatic breakdowns. Trust between the two nations eroded due to military misadventures, political mistrust, and violent cross-border incidents. Despite nuclear deterrence, crises like Kargil, the Parliament attack, and the Samjhauta bombing nearly reignited war, highlighting the fragile peace in the region.

1.10 Kargil War – 1999

- In May 1999, Pakistan Army regulars and Kashmiri militants **infiltrated high-altitude Indian military posts** along the **Kargil sector** of **Ladakh**, a region in Indian-administered Kashmir.
- The operation was launched under the leadership of **General Pervez Musharraf**, then Pakistan's army chief, allegedly without full approval of Prime Minister Nawaz Sharif.
- Pakistani troops occupied key strategic peaks, including **Tololing**, **Tiger Hill**, and **Batalik**, threatening India's vital **Srinagar–Leh highway (NH-1D)**.

India's Military Response and U.S. Mediation

- India launched **Operation Vijay** to reclaim the lost positions, employing airpower and artillery under severe high-altitude conditions.
- The conflict lasted **May–July 1999**, resulting in over **1,000 deaths** on both sides (Indian official count: ~527 soldiers; Pakistani: estimates range 400–700+).
- Under **U.S. pressure**, especially from **President Bill Clinton**, Nawaz Sharif was forced to withdraw troops after a **July 4, 1999** meeting in Washington.
- **Pakistan faced global condemnation** for initiating the conflict across the Line of Control (LoC) in violation of the **Simla Agreement (1972)**.

Strategic and Political Impact

- The **Lahore Declaration**, signed just months earlier in February 1999 to normalize relations, was nullified by the conflict.

- The Kargil War led to the **military coup of October 1999**, where General Musharraf ousted Nawaz Sharif and assumed power.
- It severely damaged Pakistan's global reputation and highlighted the **risks of limited war under a nuclear overhang**.

1.11 Indian Parliament Attack – 2001

- On **December 13, 2001**, **five heavily armed militants** stormed the Indian Parliament in New Delhi, killing **14 people**, including guards and a gardener, before being gunned down.
- India blamed **Jaish-e-Mohammed (JeM)** and **Lashkar-e-Taiba (LeT)**, Pakistan-based militant groups, for orchestrating the attack.
- The attack occurred when both houses of Parliament were in session, and many top political leaders narrowly escaped.

India's Response and Escalation

- India immediately recalled its ambassador from Islamabad and **cut diplomatic and rail/bus links** with Pakistan.
- Launched **Operation Parakram**, a massive military mobilization, deploying over **500,000 troops** along the border for **10 months**, making it one of the largest troop deployments since WWII.
- Pakistan responded with similar troop build-up, resulting in a **high-alert military standoff**.

International Mediation and War Avoidance

- The U.S., Russia, and EU intervened diplomatically to de-escalate the situation, fearing nuclear war.
- Under pressure, **President Pervez Musharraf gave a televised speech (January 2002)** pledging a crackdown on banned militant groups and assuring non-use of Pakistani soil for terrorism.
- Despite mobilization, **no full-scale war occurred**, but tensions remained high, and cross-border infiltration continued.

1.12 Samjhauta Express Bombing – 2007

- On **February 18, 2007**, two firebombs exploded on the **Samjhauta Express** (Attari Express), a bi-weekly train running between **Delhi and Lahore**, near **Panipat, Haryana**.
- The attack killed **68 people**, including **43 Pakistani nationals**, making it one of the worst cross-border civilian tragedies.

Initial Investigations and Changing Narrative

- Initial Indian investigations suspected the involvement of **Pakistan-based extremist groups**, such as LeT or JeM.
- However, later probes by the **National Investigation Agency (NIA)** and testimonies by Indian witnesses revealed a **Hindutva right-wing extremist plot**.
- **Swami Aseemanand**, linked to the **RSS and Abhinav Bharat**, was arrested and confessed (later retracted), alleging a "revenge" motive

for Islamist attacks.

- A key accused, **Lt. Col. Shrikant Purohit**, an Indian Army officer, was also investigated but later granted bail.

Diplomatic Fallout and Politicization

- The bombing raised serious concerns over the **security of cross-border confidence-building measures (CBMs)** like the Samjhauta train and Delhi–Lahore bus.
- In Pakistan, the event was seen as **evidence of Indian double standards**—while blaming Pakistan for terror, its own radical elements were allegedly involved.
- The tragedy highlighted how **innocent civilians become casualties** in the broader geopolitical struggle between the two nations.
- The **2019 acquittal of all accused** due to “lack of evidence” sparked outrage among Pakistani officials and victims’ families.

Terrorism, Tensions, and Stalled Diplomacy (2008–2016)

From 2008 onward, Indo-Pak relations deteriorated sharply due to a series of **high-profile terrorist attacks**, many of which were attributed to **Pakistan-based militant groups**. These attacks repeatedly derailed diplomatic processes and peace talks, reinforcing mistrust between the two countries. The **Mumbai Attacks (2008)** marked a turning point, turning global opinion sharply against Pakistan’s alleged support for non-state actors. Subsequent attacks like Pampore (2016) contributed to prolonged hostility and military alertness on both sides.

1.13 Mumbai Attacks – 2008 (26/11 Attacks)

- On **November 26, 2008**, **ten heavily armed militants** from the **Lashkar-e-Taiba (LeT)** infiltrated Mumbai via sea route and carried out **coordinated shootings and bombings** over three days.
- The attacks targeted multiple locations, including:
 - **Taj Mahal Palace Hotel**
 - **Oberoi Trident Hotel**
 - **Leopold Café**
 - **Chhatrapati Shivaji Maharaj Terminus (CSMT)**
 - **Nariman (Jewish) House**

Casualties and Global Impact

- **166 civilians were killed**, including **26 foreign nationals** from countries like the U.S., U.K., Israel, and Germany.
- Over **300 people were injured**, and India's financial capital was left paralyzed.
- The attack was widely televised, drawing intense international media coverage and diplomatic condemnation.

Ajmal Kasab and Investigation

- **Ajmal Amir Kasab**, the only surviving attacker, was captured alive by Mumbai police at CSMT station.
- His **interrogation revealed Pakistani links**, including training camps operated by LeT in **Muzaffarabad (Pakistan-administered Kashmir)**.
- Kasab was tried under Indian anti-terror laws and was **executed in November 2012** in Pune's Yerwada Jail.

India's Diplomatic Reaction

- India **suspended the composite dialogue** with Pakistan and called for **international pressure** on Islamabad to dismantle terrorist infrastructure.
- New Delhi submitted a detailed **dossier with evidence**, including phone recordings, GPS data, and Kasab's confession.
- Despite initial denials, **Pakistan acknowledged Kasab as a Pakistani citizen**, and seven LeT operatives, including **Zakiur Rehman Lakhvi**, were arrested.

Global Condemnation and FATF Pressure

- The **United Nations Security Council (UNSC)** designated **Jamaat-ud-Dawa (JuD)**—LeT's front—as a **terrorist organization** under **Resolution 1267**.
- The **Financial Action Task Force (FATF)** began tightening scrutiny on Pakistan's counterterrorism financing laws.
- The U.S. described the attack as **"India's 9/11,"** and Indo-U.S. counterterror cooperation deepened post-2008.

1.14 Pampore Attack – 2016

- On **June 25, 2016**, militants attacked a **Central Reserve Police Force (CRPF) convoy** on the **Srinagar–Jammu highway** in **Pampore**, killing **8 CRPF personnel** and injuring over 20.
- The attackers were reportedly associated with the **Lashkar-e-Taiba (LeT)** or **Hizbul Mujahideen**, both allegedly operating from bases in Pakistan.

Terror Incidents in Context: 2016 Surge

- The Pampore attack was **one of multiple high-profile incidents** in 2016 that led to heightened military tensions:
 - **Pathankot Airbase Attack (January 2016)** – 7 Indian soldiers killed.
 - **Uri Army Base Attack (September 2016)** – 19 Indian soldiers killed in one of the deadliest strikes.
- These attacks collectively **strained diplomatic efforts**, and India began reassessing its **"strategic restraint" doctrine**.

India's Tactical and Strategic Response

- India started **tightening security measures** in Jammu and Kashmir and increased intelligence coordination.

- Following the **Uri attack**, India conducted **“surgical strikes”** across the LoC on September 29, 2016, targeting militant launch pads.
- The strikes marked a **policy shift**, asserting a more proactive military posture.

Regional and International Implications

- These repeated attacks disrupted peace dialogues like the **Comprehensive Bilateral Dialogue** restarted in late 2015.
- India began lobbying at international forums for Pakistan's **isolation as a state sponsor of terrorism**.
- Pakistan, in contrast, denied involvement and accused India of fabricating incidents to divert attention from **human rights violations in Kashmir**, especially following the **killing of militant commander Burhan Wani in July 2016**.

India Relations: Escalation Cycle and Strategic Water Diplomacy (2016)

The year 2016 marked a dramatic escalation in Indo-Pak tensions, especially in Kashmir. Triggered by the killing of Burhan Wani and exacerbated by cross-border terrorism, both nations adopted hardened stances. India shifted to a more aggressive military posture post-Uri attack and signaled a willingness to weaponize water under the Indus Waters Treaty. These developments introduced new dimensions of hybrid warfare and diplomatic confrontation in South Asia.

1.15 Burhan Wani Killing – 2016

- **Burhan Muzaffar Wani**, a 22-year-old commander of **Hizbul Mujahideen**, was killed by Indian security forces in an encounter on **July 8, 2016**, in **Kokernag, Anantnag district**, Jammu and Kashmir.
- He had become a **charismatic icon** for Kashmiri youth, known for using social media to promote militancy and portray insurgency as a nationalist cause.
- Wani's killing was viewed by locals not as the death of a militant, but as the **martyrdom of a freedom symbol**, leading to unprecedented public mobilization.

Mass Protests and Civil Unrest

- Over **200,000 people attended his funeral**, defying curfews and military presence, signaling mass public grief and resistance.
- **Widespread protests and stone-pelting** erupted across the Kashmir Valley, with youth clashing with paramilitary forces for weeks.

Human Rights Violations and International Concerns

- Indian forces responded with aggressive crackdowns, using **pellet guns** that led to **over 1,000 eye injuries**—many resulting in permanent blindness.
- The **UN High Commissioner for Human Rights (UNHCHR)** and

Amnesty International expressed concern over:

- Excessive use of force
- Arbitrary detentions
- Restrictions on communication and press freedom
- **Over 90 people were killed** in clashes, and **more than 15,000 were injured** by the end of 2016.

Pakistan's Reaction

- **Pakistan declared July 19 as "Black Day"** to condemn Wani's killing.
- PM **Nawaz Sharif** referred to Wani as a **"martyr of the Kashmiri freedom movement."**
- The issue was taken to **international forums including the UN**, where Pakistan called for a plebiscite and accused India of state-sponsored oppression.

1.16 Uri Attack – 2016

- On **September 18, 2016**, four heavily armed militants attacked the **Indian Army brigade headquarters** in **Uri**, near the Line of Control (LoC) in Jammu and Kashmir.
- The pre-dawn attack led to the deaths of **19 Indian soldiers**, making it the **deadliest attack on Indian security forces in two decades**.
- Indian authorities blamed **Pakistan-based group Jaish-e-Mohammed (JeM)** for the assault, based on recovered items and cross-border infiltration evidence.

India's Military Response: Surgical Strikes

- On **September 29, 2016**, India claimed to have carried out **"surgical strikes"** across the LoC, targeting militant launch pads in Pakistan-administered Kashmir.
- This marked **India's first publicly acknowledged cross-border raid** in response to a terror attack.
- The operation was executed by **Indian Army Para Special Forces**, supported by real-time surveillance from drones and thermal imaging.

Domestic and Diplomatic Impact

- The strikes were hailed in India as a **paradigm shift** from a defensive to an offensive posture, altering India's counterterrorism doctrine.
- India **boycotted the SAARC summit** (scheduled in Islamabad), leading to its cancellation.
- Pakistan **denied that any surgical strike had occurred**, calling it a media fabrication and threatening retaliation for any violations of sovereignty.

Global Reactions

- The U.S., Russia, and EU called for restraint, emphasizing dialogue, but refrained from direct condemnation.
- India gained diplomatic support in forums like **BRICS** and **UNGA**, where it raised the issue of **Pakistan's sponsorship of terrorism**.

1.17 Indus Waters Treaty Tensions – 2016

- In the aftermath of the **Uri attack**, Indian PM **Narendra Modi** declared,
"Blood and water cannot flow together,"
indicating a potential strategic shift in India's approach to the **Indus Waters Treaty (IWT)**.

Background of the Treaty

- The **IWT (1960)**, brokered by the **World Bank**, allocates:
 - **Eastern rivers (Ravi, Beas, Sutlej)** to **India**
 - **Western rivers (Indus, Jhelum, Chenab)** to **Pakistan**
- The treaty is often cited as one of the **most successful water-sharing agreements** globally, surviving wars and crises.

India's Rethinking and Measures

- Following Uri, India reviewed the treaty's provisions and announced it would:
 - Expedite dam projects on western rivers (e.g., **Kishanganga** and **Ratle**).
 - Utilize its full legal share of waters.
 - Suspend meetings of the **Permanent Indus Commission (PIC)** temporarily.

Pakistan's Reaction and Diplomatic Outreach

- Pakistan responded by:
 - **Requesting the World Bank** to intervene in Indian hydroelectric projects, especially **Kishanganga**.
 - Raising the issue at the **United Nations General Assembly (UNGA)** and **Organization of Islamic Cooperation (OIC)**.
- Pakistan argued that India's actions were a **violation of treaty spirit** and a step toward **"water aggression."**

International Mediation and Outcome

- The **World Bank resisted terminating or renegotiating** the treaty, reaffirming its validity.
- In 2016–2017, the Bank paused arbitration efforts to give both countries time to resolve dam-related disputes bilaterally.
- India did **not abrogate the treaty** but demonstrated that it could use water policy as a **strategic tool of pressure**.

India Relations: Military Escalations, Legal Battles, and Limited Diplomacy (2019–2023)

The period from 2019 onwards saw an interplay of **cross-border military escalations**, **legal confrontations at international courts**, and **symbolic peace gestures**. While events like the **Kartarpur Corridor** reflected soft diplomacy, other incidents like the **Pulwama-Balakot episode** and the

Kulbhushan Jadhav case illustrated deep-seated mistrust. Continued insurgency in Kashmir, including recent attacks like the **Pahalgam ambush**, has kept tensions high.

1.18 Kartarpur Corridor – 2019

- Despite severe bilateral tensions following the **Pulwama-Balakot crisis**, Pakistan and India managed to jointly operationalize the **Kartarpur Corridor**.
- Opened on **November 9, 2019**, the corridor allows Indian Sikh pilgrims **visa-free access** to the **Gurdwara Darbar Sahib** in **Kartarpur, Pakistan**, one of the holiest sites in Sikhism.

Religious and Diplomatic Significance

- The corridor spans **4.7 kilometers** and connects **Dera Baba Nanak** (India) to **Gurdwara Darbar Sahib**, where **Guru Nanak Dev Ji**, the founder of Sikhism, spent his last years.
- It allows **5,000 pilgrims daily**, with pre-registration but no need for visas—a unique setup for Indo-Pak religious diplomacy.
- It was praised by global Sikh communities and the **UNESCO**, being called a **“model of interfaith peace-building.”**

Symbolism Amid Hostility

- Pakistan initiated the project under **PM Imran Khan** and **COAS Gen. Qamar Bajwa**, presenting it as a **gesture of goodwill**.
- India, though skeptical, acknowledged it as a **positive humanitarian step**, despite strained bilateral talks.
- The inauguration coincided with the **550th birth anniversary of Guru Nanak**, amplifying its emotional and religious impact.

1.19 Pulwama Attack – 2019

- On **February 14, 2019**, a suicide bomber from **Jaish-e-Mohammed (JeM)** rammed an explosive-laden vehicle into a **CRPF convoy** in **Pulwama, Jammu & Kashmir**, killing **40 Indian paramilitary personnel**.
- It was the **deadliest attack on Indian forces in Kashmir** in three decades.

Immediate Aftermath

- JeM, a banned group operating from Pakistan, claimed responsibility via a **video statement**, intensifying accusations of Pakistan's involvement.
- India launched an extensive **diplomatic offensive**, engaging **UNSC members**, and withdrew **MFN trade status** from Pakistan.

Long-Term Repercussions

- The attack derailed all bilateral engagement and triggered a **new phase of military assertiveness** by India, setting the stage for the **Balakot airstrikes**.

- The UN Secretary-General and countries like the **U.S., France, and Russia condemned the attack**, urging restraint.

1.20 Balakot Strikes – 2019

- In retaliation for the Pulwama bombing, the **Indian Air Force (IAF)** conducted **airstrikes on February 26, 2019**, in **Balakot**, Khyber Pakhtunkhwa, Pakistan.
- India claimed to have **targeted a JeM training camp**, killing dozens of militants, though **no official body count was verified**.

Pakistan's Denial and Response

- Pakistan denied the presence of terror camps and stated the airstrikes **only hit a forested area**, causing no casualties.
- On **February 27, 2019**, Pakistan retaliated with **Operation Swift Retort**, conducting **airstrikes across the LoC**.

Capture and Return of IAF Pilot

- **Wing Commander Abhinandan Varthaman's MiG-21 Bison** was shot down in the dogfight. He was captured by Pakistan.
- In a **diplomatic gesture**, PM **Imran Khan announced his return** within 48 hours to **avoid further escalation**.
- The move was globally praised and viewed as a potential opening for de-escalation.

1.21 Kulbhushan Jadhav Case – 2016–2021

- In **March 2016**, Pakistani authorities arrested **Kulbhushan Jadhav**, claiming he was an **Indian RAW (Research and Analysis Wing) agent** operating in **Balochistan**.
- He was tried in a **military court**, sentenced to death in **April 2017**, and denied consular access initially.

India's Position and Legal Battle

- India claimed Jadhav was a **former Navy officer kidnapped from Iran**, where he was working in business.
- India moved the **International Court of Justice (ICJ)** at **The Hague**, demanding consular access under the **Vienna Convention on Consular Relations (1963)**.

ICJ Judgment – July 17, 2019

- The ICJ ruled in favor of India, ordering:
 - **Consular access must be granted**
 - **Death sentence must remain stayed**
 - **Pakistan must review and reconsider the conviction**
- Pakistan complied partially, granting **limited consular access in 2021**, but **refused civilian retrial**, drawing criticism from India and legal observers.

1.22 Pahalgam Attack – 2023

- In **early 2023**, militants ambushed an **Indian Army and police patrol** near **Pahalgam**, Anantnag district in south Kashmir, resulting in **multiple casualties** among security personnel.
- The attack was part of a **renewed insurgent wave** in the valley, targeting both civilians and armed forces.

India's Response

- Security forces launched **large-scale search operations**, night raids, and increased military presence in the area.
- Local communication was curtailed, and curfews imposed to prevent further unrest.

Pakistan's Reaction

- Pakistan issued a statement **denouncing human rights violations** in response to the military crackdown.
- At the **OIC and UNHRC**, Pakistan raised concerns over **India's counterinsurgency policies**, alleging extrajudicial killings and demographic changes in Kashmir.

Continued Diplomatic Fallout

- Despite **backchannel communication channels (Track-II diplomacy)** remaining open, no formal talks resumed post-attack.
- Pakistan maintained its stance of moral and diplomatic support for Kashmiris, while India accused Pakistan of continued **cross-border terror support**.

Part 2: Kashmir Dispute – Core Issue of Indo-Pak Conflict

The Kashmir dispute remains the **central and most intractable issue** in Pakistan–India relations since 1947. Despite various wars, treaties, and international interventions, the status of Jammu and Kashmir has never been mutually resolved. The issue embodies deep **historical, territorial, ideological, and security concerns** for both states. It also involves **ethnic, religious, and geostrategic dimensions**, making it not just a bilateral issue but a potential global flashpoint between two nuclear powers.

2.1 Nature of the Kashmir Dispute

- At the time of **Partition in 1947**, the British Raj allowed over 560 princely states to choose between joining **India or Pakistan**, based on geographic contiguity and majority population.
- **Jammu & Kashmir** was a unique case: a **Muslim-majority population (~77%)** ruled by a **Hindu Maharaja, Hari Singh**. Initially, he sought **independence**, avoiding accession to either dominion.
- In **October 1947**, tribal fighters from Pakistan's North-West Frontier Province invaded Kashmir in support of a Muslim uprising. Facing a

security crisis, Maharaja Hari Singh **requested military help from India.**

- India agreed to send troops only after the Maharaja signed the **Instrument of Accession (IoA)** on **October 26, 1947**, formally acceding to India.
- Pakistan **rejected the legitimacy of the accession**, calling it coerced and invalid without a **plebiscite**.
- Thus, **Kashmir became the origin of bilateral hostilities**, leading to the **First Indo-Pak War (1947–48)** and continued conflict for decades.

2.2 Current Control & Territorial Divisions

The Jammu and Kashmir region is **administered by three different countries**—India, Pakistan, and China—each controlling parts of the original princely state.

Territorial Distribution

Country	Controlled Region
India	Jammu, Kashmir Valley, Ladakh
Pakistan	Azad Jammu & Kashmir (AJK), Gilgit-Baltistan
China	Aksai Chin (occupied during 1962 war), Shaksgam Valley (ceded by Pakistan in 1963)

Key Military Boundaries

- **LoC (Line of Control):** Established after the **1972 Simla Agreement**, it divides **Indian-administered and Pakistani-administered Kashmir**. It is a heavily militarized frontier, with frequent ceasefire violations.
- **LAC (Line of Actual Control):** A de facto boundary between **India and China** in **eastern Ladakh**. It came under dispute during the **Sino-Indian War (1962)** and again during the **2020 Galwan clash**.

Implications of Territorial Division

- These boundaries remain **undemarcated and militarized**, with **no final status agreement**.
- Periodic **cross-border shelling, skirmishes, and airspace violations** are common along both LoC and LAC.
- The **local population faces displacement, curfews, and human rights concerns** across all regions.

2.3 India's Position on Kashmir

India maintains that **Kashmir is an integral part** of its territory based on legal accession and constitutional processes.

Legal and Political Arguments

- India argues that the **Instrument of Accession (Oct 1947)** was **voluntary, final, and legally binding** under international law.
- It claims that **Pakistan's invasion violated the Standstill Agreement** and forced the Maharaja to seek protection from India.
- India opposes any **third-party mediation**, insisting that Kashmir is a **bilateral matter**, per the **Simla Agreement (1972)** and **Lahore Declaration (1999)**.

Revocation of Article 370

- On **August 5, 2019**, India **revoked Article 370** of its Constitution, which had granted **special autonomous status** to Jammu and Kashmir.
- The region was reorganized into two **Union Territories—Jammu & Kashmir** and **Ladakh**—bringing it under **direct central control**.
- India argues that Article 370 was **temporary** and its removal brings the region into full constitutional integration.

Allegations Against Pakistan

- India accuses Pakistan of:
 - **Sponsoring cross-border terrorism**, especially via groups like **Jaish-e-Mohammed** and **Lashkar-e-Taiba**.
 - **Training and arming insurgents** in Pakistani-administered Kashmir.
 - **Using social media and religious networks** to radicalize Kashmiri youth.

Security and Strategic Importance

- Kashmir holds significant **strategic value**, bordering **China, Pakistan, and Afghanistan**.
- India maintains a **large military presence**, citing national security and the **need to prevent secessionist violence**.

2.4 Pakistan's Position on Kashmir

Pakistan considers **Kashmir a disputed territory**, whose final status should be determined by **the will of the Kashmiri people**, ideally through a **UN-mandated plebiscite**.

Historical & Legal Justifications

- **Founder Muhammad Ali Jinnah** called Kashmir the **"jugular vein of Pakistan,"** emphasizing its **Muslim-majority status** and **geographic contiguity**.
- Pakistan asserts that the **accession to India was illegal**, done under **Indian military pressure**, and should have been **ratified by the people**.
- Cites **UN Security Council Resolutions 47 (1948)** and others, which call for:
 - Ceasefire
 - Withdrawal of Pakistani and Indian forces

- Holding of a **free and fair plebiscite**

Right to Self-Determination

- Pakistan advocates for **Kashmiris' right to self-determination**, aligning it with global norms under the **UN Charter (Articles 1 and 55)** and **ICCPR (Article 1)**.
- It observes **Kashmir Solidarity Day (Feb 5)** annually to highlight global awareness.

Geostrategic and Hydrological Importance

- The **headwaters of the Indus River system** lie in Indian-administered Kashmir, making water access a **vital national interest**.
- **Rivers like the Jhelum, Chenab, and Indus** are critical for **Pakistan's agriculture, hydroelectricity, and drinking water**.
- Projects like **India's Kishanganga and Ratle dams** on these rivers are seen as existential threats, often **contested under the Indus Waters Treaty (1960)**.

Allegations Against India

- Pakistan accuses India of:
 - **Widespread human rights abuses**, including mass detentions and pellet gun injuries.
 - **Unilateral demographic changes** after the revocation of Article 370.
 - **Blocking international observers** and **suppressing local political voices** in Kashmir.

3. United Nations & the Kashmir Conflict

The Kashmir conflict has been on the **UN agenda since 1948**, making it one of the **longest unresolved disputes** in UN history. While multiple resolutions and peace plans were proposed, none succeeded due to **non-compliance, mistrust, and regional power politics**. This section explores the role of the **UN Security Council (UNSC)**, key resolutions, and peace efforts like the **Dixon Plan** and **Musharraf's Four-Point Formula**.

3.1 UN Mediation & Resolution 47 (1948)

- After the outbreak of the **First Kashmir War (1947–48)**, India approached the **UN Security Council** under **Article 35 of the UN Charter**, claiming **external aggression** by Pakistan.
- On **April 21, 1948**, the **UNSC passed Resolution 47**, aimed at resolving the dispute through **peaceful means** and a **plebiscite mechanism**.

Core Provisions of UNSC Resolution 47

1. **Immediate ceasefire** between Indian and Pakistani forces to halt hostilities.
2. **Withdrawal of Pakistani tribesmen and regular troops** from Jammu

and Kashmir territory.

3. **Gradual reduction of Indian forces**, sufficient to maintain law and order, under UN observation.
4. **Plebiscite to be held under UN supervision**, allowing the people of Jammu & Kashmir to choose between accession to India or Pakistan.

Reasons for Failure

- **Pakistan did not fully withdraw its troops**, citing distrust that India would comply with plebiscite conditions afterward.
- As a result, **India refused to hold the plebiscite**, arguing the **preconditions were not met**.
- The disagreement over sequencing (who demilitarizes first) **paralyzed implementation**.
- The **ceasefire line established in 1949** became the de facto boundary (now known as the **LoC**).

Impact

- The issue remains **"on the books" at the UN**, with periodic discussions but **no new resolution since 1971**.
- India now **considers the matter closed** post-Simla Agreement, while **Pakistan still refers to Resolution 47** as the legal basis for international mediation.

3.2 Key UN Resolutions on Kashmir (1948–1957)

The UNSC passed a series of resolutions reaffirming the disputed nature of Kashmir and urging peaceful resolution through diplomacy and demilitarization.

Chronology of Major UN Resolutions

Resolution	Year	Key Provision
39	1948	The Council established a commission (made up of one member chosen by India, one chosen by Pakistan, and one chosen by the two existing members) to assist in the peaceful resolution of the situation in Kashmir.
47	1948	Called for ceasefire, troop withdrawals, and UN-supervised plebiscite

51	1948	Reaffirmed earlier call for plebiscite and continuation of UN mediation
80	1950	Called for simultaneous withdrawal and proposed appointment of UN administrator
91	1951	Declared Indian-sponsored elections in J&K could not substitute plebiscite
96	1951	Reaffirmed earlier positions and urged new negotiations

Why UN Resolutions Failed

- **Lack of enforcement mechanisms**—the UN could only recommend, not impose, decisions.
- The **Cold War** shifted global focus, with major powers hesitant to act decisively.
- **India's shift from internationalization to bilateralism** post-1950 weakened UN leverage.
- **Pakistan's military and political instability** during the 1950s also reduced implementation potential.

3.3 The Dixon Plan (1950)

In a new peace attempt, the **UN appointed Sir Owen Dixon**, an Australian jurist, as a mediator in 1950. He proposed a **regional division-based solution**.

Key Elements of the Dixon Plan

- **Partition of Jammu & Kashmir** along religious and geographical lines:
 - **Ladakh** to go to **India** (majority Buddhist and Hindu areas).
 - **Azad Jammu & Kashmir and Gilgit-Baltistan** to remain with **Pakistan** (majority Muslim).
 - The **Kashmir Valley** (predominantly Muslim) to undergo a **plebiscite**.
- Dixon suggested **zonal referendums**, not a single statewide vote, for more realistic implementation.

India's Rejection and Plan's Collapse

- India objected to dividing the region and was particularly concerned about **losing the Kashmir Valley**.
- Dixon resigned in **1951**, frustrated by both sides' unwillingness to **compromise**.

- The plan failed despite being widely seen as **one of the most balanced proposals** for a peaceful settlement.

3.4 Musharraf's Four-Point Formula (2006)

Proposed by **President Pervez Musharraf of Pakistan** during a period of relative thaw in Indo-Pak relations (2004–2007), this was a **backchannel peace proposal**.

Main Provisions of the Formula

1. **Demilitarization** of the Kashmir region by both Indian and Pakistani forces to reduce tensions.
2. **Self-governance/autonomy** for both Indian and Pakistani-administered Kashmir without secession.
3. Establishment of a **joint supervision mechanism**, involving **India, Pakistan, and Kashmiris** from both sides.
4. **No redrawing of existing borders**, but **softening of LoC** to allow **free movement of people and trade**.

Positive Momentum (2004–2007)

- The proposal received **quiet approval** in principle by both governments and was **discussed in secret meetings** between Indian National Security Advisor and Pakistani officials.
- **Cross-LoC bus service (Srinagar–Muzaffarabad)** and **confidence-building measures (CBMs)** were initiated during this time.
- Analysts and diplomats like **Shuja Nawaz and Steve Coll** considered the formula **politically viable** and **regionally acceptable**.

Breakdown of Progress

- The **Mumbai terrorist attacks in 2008** froze all negotiations and led to a breakdown in diplomatic trust.
- **Musharraf's resignation in 2008** and Pakistan's internal political instability further ended the backchannel process.
- Successive Indian governments showed **limited interest** in reviving the proposal.



Summary: Why UN and Mediation Efforts Failed

- **Trust deficit** between India and Pakistan on verification and sequencing of demilitarization.
- **India's shift to bilateralism** post-1972 Simla Agreement undermined UN jurisdiction.
- **Geopolitical factors**, including the Cold War and rising nationalism, sidelined mediation.
- Pakistan's increasing **focus on internationalizing the issue**, while India emphasized **internal sovereignty**, created a **deadlock of principles**.

4. Revocation of Article 370 & 35A – A Turning Point in 2019

On **August 5, 2019**, the Government of India revoked **Article 370** and **Article 35A** of its Constitution, effectively stripping **Jammu and Kashmir's special autonomous status** and bringing it fully under **federal control**. This move was hailed as historic by the Indian government but condemned by Pakistan, Kashmiri leaders, human rights bodies, and international observers. It marked the most dramatic shift in the legal and political status of Kashmir since 1947.

4.1 Article 370 – What It Was

Article 370 was a **"temporary provision"** in the Indian Constitution that **granted special status to the state of Jammu and Kashmir**, acknowledging its **unique circumstances at accession**.

Key Provisions of Article 370

- Allowed **Jammu & Kashmir to have its own Constitution**, which was adopted in **1956** and provided **autonomy over internal matters**.
- Gave J&K a **separate state flag**, official until 2019, symbolizing its distinct identity within the Indian Union.
- Limited the **jurisdiction of the Indian Parliament to defense, foreign affairs, communications, and finance**—other laws required **state government approval**.
- The Article could be modified **only with the concurrence of the J&K Constituent Assembly**, which was dissolved in 1957, making further changes legally complex.

Revocation Mechanism in 2019

- On **August 5, 2019**, the Indian government, led by **PM Narendra Modi and Home Minister Amit Shah**, issued **Presidential Order C.O. 272**, using **Article 370(1)(d)** to extend all provisions of the Indian Constitution to J&K.
- Since the J&K state legislature was **dissolved in 2018** and President's Rule was in effect, the **Governor (acting as the state government)** gave approval.
- Parliament passed the **Jammu and Kashmir Reorganization Act, 2019**, which **bifurcated the state** into two **Union Territories: Jammu & Kashmir, and Ladakh**.

4.2 Article 35A – What It Was

Article 35A was **not part of the original Indian Constitution**. It was introduced by a **Presidential Order (1954)** under the powers of Article 370 and was **not debated in Parliament**.

Provisions of Article 35A

- Empowered the J&K Legislature to define **"permanent residents"** of the state and grant them exclusive rights.
- Restricted **property ownership** to permanent residents only—

outsiders could not buy land.

- Reserved **government jobs, scholarships, and education benefits** exclusively for local Kashmiris.
- Prevented **non-residents from voting** in state assembly elections.
- Aimed at **preserving the cultural and demographic identity** of Kashmir's Muslim-majority population.

Aftermath of Abrogation

- The **removal of Article 35A**, alongside Article 370, **opened up land ownership, job eligibility, and residence rights** to Indians from other states.
- Kashmiri leaders and activists **feared demographic engineering**, where **non-Kashmiri settlers** could change the population balance and **dilute Muslim majority** in the Valley.
- Critics argue it violates **UN Security Council Resolutions**, while India maintains it's an **internal constitutional matter**.

4.3 Impact of Revocation

The 2019 revocation led to **major legal, political, human rights, and diplomatic consequences**, both within India and internationally.

Political and Security Clampdown

- **Mass arrests** of Kashmiri politicians (e.g., Mehbooba Mufti, Omar Abdullah), activists, and civil society members.
- Complete **internet shutdowns**—one of the world's longest (213 days), affecting communication, healthcare, and education.
- Imposition of **curfews and military lockdowns**, with over **40,000 additional troops deployed**, turning Kashmir into a **heavily militarized zone**.

Legal Reorganization

- The **statehood of J&K was revoked**—a first in Indian constitutional history where a **full state was downgraded to two Union Territories**.
- **Jammu and Kashmir** was given a legislative assembly (like Delhi), while **Ladakh** was made a UT without a legislature.
- All central laws, including **RTI, anti-corruption laws, and minority protections**, were now applicable to the region.

International and UN Response

- The **UN Secretary-General António Guterres** expressed concern, urging India and Pakistan to **exercise restraint** and uphold **human rights in Kashmir**.
- The **Office of the UN High Commissioner for Human Rights (OHCHR)** criticized the **communications blackouts and arbitrary detentions**.
- **China**, a third stakeholder in the Kashmir issue due to **Aksai Chin**, **opposed the move**, especially India's declaration of Ladakh as a Union Territory.

- **Pakistan** responded by:
 - **Downgrading diplomatic ties** and **suspending bilateral trade**.
 - Raising the issue at **UNSC, OIC, and international forums**.
 - Observing **"Kashmir Hour"** weekly to internationalize the issue.
 - Issuing a **new political map in 2020**, claiming all of J&K and Ladakh as disputed.

Impact on Local Population

- Kashmiri civilians reported **widespread trauma**, economic losses in tourism, and a **chilling effect on civil liberties**.
- Journalists and activists faced **restrictions on movement and reporting** under laws like the **Public Safety Act (PSA)** and **Unlawful Activities Prevention Act (UAPA)**.
- Critics, including **Amnesty International** and **Human Rights Watch**, called the situation a **"human rights crisis."**

5. Why Kashmir is a Global Flashpoint

Kashmir remains one of the **most dangerous conflict zones in the world**, where **three nuclear-armed states—India, Pakistan, and China—have overlapping territorial claims**. Beyond the historical and regional significance, the conflict has far-reaching **global implications** for peace, security, human rights, and resource security. Several events, including military standoffs, water threats, and radicalization, make Kashmir a **persistent and unresolved flashpoint** on the world stage.

5.1 Involvement of Three Nuclear States

Kashmir is the **only territorial conflict in the world involving three nuclear powers—India, Pakistan, and China—making it inherently unstable and globally significant**.

India–Pakistan Rivalry

- **India and Pakistan have fought three wars over Kashmir**: 1947–48, 1965, and 1999 (Kargil War).
- The **1999 Kargil War** was the **first armed conflict between nuclear-armed states** post-nuclearization in 1998, heightening the risk of nuclear escalation.
- The **2019 Pulwama-Balakot Crisis** witnessed:
 - **India's airstrike** inside Pakistan's Balakot region (Feb 26).
 - **Pakistan's retaliatory airstrike** and capture of Indian pilot Abhinandan.
 - Escalation brought both nations to the brink of full-scale war.

China's Strategic Stake

- China controls **Aksai Chin**, a part of the original princely state of J&K since the 1962 Sino-Indian War.
- China objected to India's 2019 reorganization of Ladakh into a Union Territory, calling it a **"unilateral change" to disputed territory**.

- The **Galwan Valley clash in June 2020** (20 Indian and 4 Chinese soldiers dead) highlighted China's **active military posture** in the region.

Implication

- The presence of **nuclear doctrines** like **"Cold Start" (India)** and **"Full Spectrum Deterrence" (Pakistan)** raises the risk of **miscalculation**.
- **A localized border conflict could spiral** into a broader war, endangering millions and requiring international intervention.

5.2 Hydro-political Tensions

Kashmir is not only a political and military dispute but also a **hydrological and environmental crisis in the making**, especially for Pakistan.

Importance of Indus River System

- The **Indus, Jhelum, and Chenab rivers**, critical to Pakistan's agriculture and economy, **originate in Indian-administered Kashmir**.
- Pakistan depends on the Indus system for over **80% of its irrigation water**, especially for Punjab and Sindh provinces.

Indus Waters Treaty (1960)

- Brokered by the **World Bank**, it allocated:
 - **Eastern rivers (Ravi, Beas, Sutlej)** to India.
 - **Western rivers (Indus, Chenab, Jhelum)** to Pakistan.
- Considered one of the most successful water-sharing treaties globally, but **tensions have grown post-2016**.

Weaponization of Water

- After the **Uri attack (2016)**, Indian PM **Narendra Modi** declared, **"Blood and water cannot flow together."**
- India has since:
 - Accelerated construction of controversial dams like **Kishanganga (330 MW)** and **Ratle (850 MW)** on the western rivers.
 - Threatened to **limit water flow to Pakistan**, raising fears of a **hydro-war**.

Strategic Implications

- Water insecurity could provoke future **military escalation** or proxy conflict.
- Pakistan has challenged India at the **Permanent Court of Arbitration** (World Bank), including on **Kishanganga and Ratle**.

5.3 Rising Human Rights Violations

Human rights concerns have made Kashmir an issue of **international moral and legal attention**, particularly since 2016 and post-2019 revocation.

Reported Abuses

- Use of **pellet guns** by Indian forces has **blinded hundreds**, including children (Amnesty International, 2016).

- **Mass graves** were discovered in **Kupwara and Baramulla** (2009), with over 2,700 unmarked graves according to **J&K State Human Rights Commission**.
- **Curfews, internet blackouts, arbitrary detentions**, and use of **Public Safety Act (PSA)** to silence dissent are widespread.

UN Reports

- The **UN Office of the High Commissioner for Human Rights (OHCHR)** issued reports in **2018 and 2019** condemning:
 - Excessive use of force by Indian security personnel.
 - Impunity under **Armed Forces Special Powers Act (AFSPA)**.
 - Denial of humanitarian access and obstruction of civil liberties.
- The reports recommended **international investigation** and **restoration of civil rights**, but India **rejected the findings**, calling them "fallacious."

Denial of Observers and Journalists

- Foreign media, international NGOs, and UN observers are **not allowed access** to Indian-administered Kashmir.
- **Local journalists** face harassment, raids, and arrests under **UAPA and anti-terror laws**.

5.4 Rise of Militancy and Radicalization

The ongoing militarization, political alienation, and lack of political dialogue have **fuelled militancy**, especially among Kashmiri youth.

Trigger Events and Militant Iconography

- The killing of **Burhan Wani** (Hizbul Mujahideen commander) in **July 2016** sparked **massive unrest**, stone-pelting protests, and funeral processions that drew thousands.
- He became a **symbol of youth resistance**, glorified in social media, posters, and songs.
- His death marked the **resurgence of "homegrown militancy"**.

Role of Social Media

- Militants use **Facebook, Twitter, and Telegram** to recruit and communicate.
- Propaganda videos show **armed youth taking oath**, often quoting religious or nationalist slogans.
- **Online radicalization** has replaced traditional recruitment, making it harder to trace or intercept.

Cross-Border Influence and Training

- India accuses Pakistan of **training and funding militant groups** like:
 - **Lashkar-e-Taiba (LeT)**
 - **Jaish-e-Mohammed (JeM)**
- Pakistan denies state sponsorship but **acknowledges moral and diplomatic support** to Kashmiri freedom fighters.

Consequences

- Increase in **fidayeen (suicide) attacks**, such as the **Pulwama bombing (2019)**.
- Kashmir youth, disillusioned by politics, are **increasingly attracted to armed struggle**.
- **Educational disruption**, trauma, and unemployment further **fuel radicalization**.

6. Resolving the Dispute – The Way Forward

Resolving the Kashmir dispute requires more than ceasefire agreements or symbolic gestures. It demands a **multi-pronged strategy** rooted in justice, diplomacy, and human rights. The way forward must address **both the historical grievances and present-day realities**, using a combination of legal, political, humanitarian, and economic approaches. Solutions must also consider the **voices of Kashmiris**, not just the geopolitical interests of India and Pakistan.

6.1 Implementation of Existing Frameworks

The foundations for peace already exist in several historic proposals and agreements. Revisiting and refining these frameworks can provide an entry point to resume meaningful dialogue.

6.1.1 Enforce UN Resolutions (Especially Resolution 47)

- UNSC Resolution 47 (1948) laid out a clear roadmap: ceasefire, withdrawal of forces, and a plebiscite under UN supervision.
- Pakistan partially withdrew, but India claimed that Pakistan failed to meet preconditions—leading to a deadlock.
- Despite being outdated in India's view, it remains **international legal proof that Kashmir is disputed territory**.
- Reinvigorating this resolution with **updated international supervision** (like a neutral third-party peace mission) could reframe negotiations.

6.1.2 Revive the Dixon Plan under New Realities

- The Dixon Plan (1950) proposed **dividing Kashmir along religious and geographic lines**, assigning each part accordingly.
- The Valley was to be subject to a plebiscite, while Ladakh and Northern Areas would join India and Pakistan, respectively.
- India rejected it fearing loss of the Valley, but today, with demographic and security changes, the plan could be **modified to respect cultural boundaries while preserving state sovereignty**.
- This plan provides an example of **territorial compromise without complete loss of face for either party**.

6.1.3 Reopen Musharraf's Four-Point Formula

- Proposed in 2006, this framework was considered the **closest both nations came to peace since 1947**.
- It included demilitarization, self-rule, joint governance, and maintaining current borders while easing movement across them.

- Talks were progressing until the **2008 Mumbai attacks** halted the process.
- The formula remains relevant because it focuses not on **territorial ownership**, but on **practical governance, human rights, and mutual trust**.

6.2 Fresh Proposals for Sustainable Peace

Going beyond historical templates, new ideas grounded in modern diplomacy and people-centric governance can help create lasting peace.

6.2.1 Plebiscite or Autonomy Referendum Under International Supervision

- A full-scale plebiscite may no longer be realistic, but **district-wise referenda or consultations** could reveal what the people want—autonomy, merger, or independent status.
- International observers such as the **EU, UN, or Commonwealth** can lend legitimacy and transparency to the process.
- Even non-binding **opinion polls or citizens' forums** could reduce alienation and show the global community that Kashmiris are being heard.

6.2.2 Maintain Status Quo with Soft Borders and Joint Administration

- A flexible arrangement where **borders remain unchanged**, but cross-LoC movement and trade are **fully liberalized**.
- Both sides can jointly manage tourism, heritage, or natural resources like forests and rivers.
- Example: **The EU–Ireland model**, where economic and cultural integration softened the border without challenging sovereignty.

6.2.3 Demilitarization of the Kashmir Valley

- With over **700,000 Indian troops in the Valley**, demilitarization would reduce fear, end human rights abuses, and boost confidence.
- Demilitarization can begin in **schools, hospitals, shrines, and civilian zones**, while security is transferred to **local police**.
- This step will also **reduce the narrative of occupation** and lower international criticism from rights groups and UN bodies.

6.2.4 Inclusive Dialogue with All Kashmiri Stakeholders

- India and Pakistan have historically ignored Kashmiri voices—particularly **youth, women, civil society, and religious minorities**.
- A successful peace process must involve all, including **Hurriyat leaders, PDP, NC, student unions, journalists**, and Sufi scholars.
- These dialogues can be held **under the sponsorship of neutral countries like Norway or Switzerland**, similar to peace talks in Colombia and Sudan.

6.3 Diplomatic and Economic Measures

Diplomacy and economic incentives often achieve what weapons cannot. Both countries can build **mutual trust and soft power** through the following mechanisms.

6.3.1 Reviving Track-II Diplomacy

- Track-II diplomacy refers to **non-official, informal channels** involving intellectuals, artists, journalists, and ex-diplomats.
- Initiatives like **Aman Ki Asha** (a Dawn–Times of India peace project) have previously improved perceptions and created room for official talks.
- These platforms generate **shared narratives**, challenge militarism, and lay emotional groundwork for political breakthroughs.

6.3.2 Global Civil Society Movements (Like BDS)

- Inspired by the **Boycott, Divestment, and Sanctions (BDS) movement** in Palestine, Kashmir advocacy groups can push:
 - Economic boycotts of companies involved in human rights abuses,
 - Academic sanctions on institutions that promote settler narratives,
 - Legal pressure on international investors.
- This can highlight the Kashmir issue globally and **pressure democratic governments in the West** to act.

6.3.3 Pressure via OIC, UNHRC, and EU

- Pakistan and Kashmiri diaspora must **sustain pressure in global forums**:
 - The **OIC Contact Group on Kashmir** can demand accountability.
 - The **UNHRC** can appoint a **Special Rapporteur** or launch fact-finding missions.
 - The **EU Parliament** has debated Kashmir in 2020—this momentum must be maintained through lobbying and petitions.

6.3.4 Confidence-Building Measures (CBMs)

- CBMs are **small but symbolic steps** to rebuild trust between both states and peoples.
- These may include:
 - **Resuming cross-LoC trade** in items like rice, carpets, saffron, and surgical goods,
 - **Visa relaxations** for families, students, and artists,
 - **Pilgrimage routes** like the **Kartarpur Corridor** and proposed **Sharda Peeth corridor** for Kashmiri Pandits.
- Such actions show that **cooperation is possible even during political deadlock**.

6.4 Role of Global Powers in Resolving the Kashmir Dispute

The Kashmir issue is no longer just a bilateral concern between India and Pakistan; it has evolved into a **regional and global flashpoint**, drawing the

attention of several world powers. These powers can act as **mediators, influencers, or guarantors** in peace processes, depending on their strategic stakes, diplomatic alignments, and historical involvement. Their role is critical in **applying pressure, facilitating dialogue, and maintaining regional stability**, especially in a nuclearized environment like South Asia.

6.4.1 China – A Strategic Stakeholder via Aksai Chin and CPEC

- China occupies **Aksai Chin**, a region claimed by India but administered by China since the 1962 Sino-India War. This makes China a **de facto party to the Kashmir territorial dispute**, especially over Ladakh.
- In 1963, **Pakistan ceded the Shaksgam Valley to China** under a boundary agreement, further complicating China's position in the Kashmir matrix.
- China's **CPEC route passes through Gilgit-Baltistan**, which is part of the Pakistani-administered Kashmir. India opposes CPEC because it considers Gilgit-Baltistan as part of its territory.
- China has frequently blocked **India's attempts to label Pakistani individuals as terrorists** in the UNSC, showing strategic alignment with Pakistan.
- However, China prefers **status quo stability** to safeguard its economic interests and Belt and Road projects, making it a potential **silent facilitator of peace**—if its interests are protected.

6.4.2 United States – Occasional Mediator and Strategic Balancer

- The U.S. has historically positioned itself as a **crisis manager**, especially during escalations such as the **Kargil War (1999)** and **Parliament Attack Crisis (2001–02)**.
- In 2001–02, **U.S. diplomacy under Secretary Colin Powell** helped prevent full-scale war after troop mobilizations on both sides. American officials have often urged both sides to **de-escalate and engage in talks**.
- Successive U.S. administrations have avoided direct mediation due to India's opposition to third-party involvement, but they **support back-channel diplomacy** and CBMs (confidence-building measures).
- Post-9/11, the U.S. focus shifted to **counter-terrorism**, and Pakistan's role in Afghanistan gave it leverage, making Kashmir temporarily less prioritized in U.S. diplomacy.
- Under Donald Trump (2019), the U.S. offered mediation—publicly accepted by Pakistan but **strongly rejected by India**, reaffirming its stance that Kashmir is a **bilateral issue**.

6.4.3 Saudi Arabia and UAE – Financial and Political Influencers on Pakistan

- Both Saudi Arabia and UAE hold significant **financial and diplomatic influence** over Pakistan, especially through:

- **Oil supply**
- **Monetary loans**
- **Remittance flows**
- **Support in international financial institutions (like the IMF and FATF)**
- These Gulf states have historically **supported Pakistan's stance on Kashmir**, especially during OIC meetings.
- However, since **India's growing economic clout and energy partnerships**, both UAE and Saudi Arabia have **softened their pro-Pakistan posture**.
- Notably, UAE became the **first Arab country to award Modi the Order of Zayed** in 2019, despite international backlash over Kashmir's Article 370 revocation.
- Nevertheless, these states can still act as **moral voices within the Muslim world**, pushing for **human rights and inter-Islamic solidarity**, especially through the **OIC platform**.

6.4.4 United Nations – Legal Legitimizer and Peace Platform

- The UN was the **first international forum** where the Kashmir issue was raised (by India itself in 1948), leading to **UNSC Resolution 47** calling for plebiscite and troop withdrawal.
- Over the years, the UN has passed **more than a dozen resolutions** reaffirming the disputed status of Kashmir and the right to self-determination.
- Although the UN has become less active in direct intervention due to lack of implementation and bilateral treaties like Simla Agreement (1972), it continues to offer:
 - **Human rights scrutiny** via OHCHR (Office of the High Commissioner for Human Rights)
 - **Peacekeeping support** if ever agreed to by both countries
- The **UN OHCHR Reports (2018 & 2019)** documented alleged violations in Indian-administered Kashmir, including arbitrary detentions, use of pellet guns, and lack of accountability.
- However, without consent from both India and Pakistan, the UN's enforcement capabilities remain **limited to diplomacy and moral pressure**.

6.4.5 Organization of Islamic Cooperation (OIC) – Diplomatic and Moral Supporter

- The OIC, composed of 57 Muslim-majority countries, has consistently **backed Pakistan's position on Kashmir**.
- It has passed multiple resolutions condemning **Indian actions in Kashmir**, especially after **the abrogation of Article 370** in 2019.
- The **OIC Contact Group on Jammu and Kashmir**, formed in 1994,

regularly meets to issue statements and call for **international attention to human rights violations**.

- However, its influence has been weakened by the **economic ties of key members (like Saudi Arabia and UAE) with India**, which often **blunts strong action**.
- The OIC still serves as a **valuable moral platform** for Pakistan and Kashmiris to **internationalize their cause**, especially in Muslim civil society and global media.

Summary: Strategic Influence of Global Powers in Kashmir Issue

Power	Role in Kashmir Conflict	Alignment/Influence
China	Territorial claimant (Aksai Chin), CPEC investor	Leans pro-Pakistan, prefers stability
USA	Crisis mediator, backchannel diplomacy	Strategic ties with both, neutral
Saudi & UAE	Economic and political patrons of Pakistan	Balancing between India and Pakistan
UN	Legal authority, mediator, human rights body	Platform for resolutions, lacks power
OIC	Voice of Muslim solidarity, moral legitimacy	Strong in support, weak in execution